DATE: __/__/__ PAGE No.: _____

UNIT - 3

* INTERNATIONAL TRETIES AND CONVENTION OF IPR *

- Berne Convention ⇒ 9th Sep. 1886
  → 38 articles, initially 10 states were part of it, now 181 countries are its members.
  → Literary and artistic works are protected. e.g. ⇒ maps, plans, sketch, cinematic work.
  → came in effect from 4th December 1887.
  → Revision took Berlin in 1908, Rome 1928, Brussels 1948, stockholm 1967 and then Paris 1971.

Key features: automatic copyright protection in member countries without registration.

Importance ⇒ National treatment, automatic protection, independence of protection.

- Paris Convention ⇒ 20th March 1883.
  → came in effect from 1884, and initially 30 countries were its members.
  → Focuses on industrial property (patent, trade mark, industrial design).
  → India participated on 7th Sep. 1998.

Key features: priority rights for filling within 12 months in member countries.

DATE: __/__/__ PAGE No.: _____

→ Equal protection to other countries.
→ Initially 11 countries signed it but now-a-days 179 countries are its members.

- Madrid Protocol ⇒ 27th June 1989
  Focus: International copyright registration.
  → Implemented in India from 8th July 2013.

Key features: single application for trademark protection in multiple member countries.

NOTE ⇒ Madrid Agreement → 1891

- Hague Agreement ⇒ 1925
  Focus: international registration of industrial design.

Key feature: single design application for protection across multiple country.

- Budapest Treaty ⇒ 1977
  Focus: Deposit of micro-organism for patent procedure.

Key features: simplifies procedure for patenting biotech innovation.

- TRIPS Agreement ⇒ Trade related aspect of intellectual property rights.
Establishment: 1995 under WTO
Objective: harmonise IPR standards across member countries.

Key provision:
1) Patent to be granted for all inventions except for some exclusion like public.
2) Copyright protection for atleast 50 years post humously.
3) Protection of TM and GI.
4) Enforcment measure against infringment.
5) compulsory licensing for public health agency.

- PCT Agreement (Patent co-operation Treaty) ⇒
Establishment: 19 June 1970 washington D.C.
→ Administrated by WIPO.
Objective: simplify and streamline the patent application process across member countries.

Key features:
1) Single international patent application filed with WIPO.
2) National phase entry in designated countries after initial examination.
3) Cost effective and time saving process for patent applicant.

- Patent Act of India ⇒ Est.: 1970
→ In effect from 20 April 1972.
Objective ⇒ Protection of inventions and encouragment of technological development.
Protection period: 20 years from date of filling.
Key Provision ⇒
→ Patent granted for invention that are novel non-obvious and industrial applicable.
Exclusion:
→ Atomic energy invention, natural law, frivious invention.
→ Industries fast and rapid development.
→ Pay the rewards for new invention.
→ Invention means a new product or process.

- Patent Amendment Act of India ⇒ 1 January 2005
Objective: Align Indian patent law with the TRIPS Agreement.
Key changes:
1) Introduction of product patent (earlier restricted to process patent).
2) Allow for compulsory licensing in public interest.
3) Reduction of patent filling and processing time.

PAGE No. :

DATE: / /

4) Enhanced enforcement mechanism against infringement.

→ It was enacted on 4th April 2005.
→ Product patent protection for food, chemicals and pharmaceuticals.

- Design Act of India 2000 =>.